

26CHCV00652 26CHCV00652

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-09-08

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DEFENDANTS' MOTION TO COMPEL RESPONSES TO (1) FORM
INTERROGATORIES, (2) SPECIAL INTERROGATORIES, AND (3) REQUEST FOR PRODUCTION OF
DOCUMENTS, SET ONE AND FOR MONETARY SANCTIONS

Motion filed on July 29, 2026.

MOVING PARTY: Defendants, Rosalva Hernandez and Ziggy's Meat
Market, Inc.

RESPONDING PARTY: Plaintiff, Julio Cesar Iglesias Herrera.

NOTICE: OK.

RELIEF REQUESTED: Order compelling responses to Form
Interrogatories, Set One, Special Interrogatories, Set One, and Request for
Production of Documents, Set One. Monetary sanctions of \$744.00 against
Plaintiff.

RULING: Motion denied as moot. Monetary sanctions granted in
the amount of \$744.00 against Plaintiff.

BACKGROUND

On February 18, 2026, Julio Cesar Iglesias Herrera (Plaintiff) filed this action against Rosalva Hernandez and Ziggy's Meat Market, Inc. (collectively, Defendants) and Does 1 through 50.

On July 29, 2026, Defendants filed the instant Motion to Compel Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, and for Monetary Sanctions. Defendants filed the supporting declaration of Isidro B. Sanchez with Exhibits A through H.

On August 25, 2026, Plaintiff filed an opposition and the supporting declaration of Analicia Avila with exhibits.

On August 31, 2026, Defendants filed a reply.

DISCUSSION

Filing Fees

Defendants have combined into one filing motions to compel responses to three separate discovery devices: Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One. Each should have been separately filed with a separate filing fee. (Gov. Code, § 70617, subds. (a)(4), (f); Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) Defendants paid one \$60.00 filing fee for the combined Motion. (Sanchez Decl. ¶ 14.) The Court will nevertheless consider the Motion. Defendants are advised that future motions concerning separate discovery devices should be separately filed with the applicable filing fee.

Motion to Compel

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling response. (Code Civ. Proc., § 2030.290, subd. (b).) If a party to whom a demand for inspection is directed fails to serve a timely response, the demanding party may move for an order compelling response. (Code Civ. Proc., § 2031.300, subd. (b).)

Here, Defendants served Plaintiff with Form Interrogatories,

Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, on May 1, 2026. Responses were initially due June 2, 2026. (Sanchez Decl. ¶ 4, Exs. A-C.) After the instant Motion was filed, Plaintiff served verified responses to the discovery at issue on August 18, 2026 and verified amended responses to omitted interrogatories on August 21, 2026. (Avila Decl. ¶¶ 11-14, Exs. F-H.) Defendants acknowledge that Plaintiff's subsequent compliance ". . . eliminates the need for an order compelling initial discovery responses." (Reply at p. 2.) Because there are no remaining initial responses for the Court to compel, the Motion is DENIED as moot.

Sanctions

The court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories or inspection demands, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) The fact that requested discovery was provided after the motion was filed does not preclude an award of sanctions. (Cal. Rules of Court, rule 3.1348.)

Here, Defendants request \$744.00 in sanctions based on 3.6 hours of attorney time at \$190.00 per hour and a \$60.00 filing fee. (Sanchez Decl. ¶ 14.)

Plaintiff's counsel declares that the original June 2, 2026 response deadline was missed because the paralegal primarily responsible for maintaining her calendar was dealing with a significant family emergency and mistakenly believed the deadline had been calendared. Counsel explained the circumstances after receiving Defendants' June 3, 2026 meet-and-confer correspondence. (Avila Decl. ¶¶ 3-4.) Defendants agreed to extend the response deadline through July 6, 2026, with Plaintiff's objections preserved. (Sanchez Decl. ¶ 7, Ex. E.)

Plaintiff did not serve responses by July 6, 2026. Instead, Plaintiff requested an additional two-week extension through July 20, 2026. (Sanchez Decl., Ex. F.) Defendants did not agree to the extension. On July 20, 2026, Defendants advised that verified, objection-free responses were required that day and that a motion to compel would otherwise be filed. Five minutes later, Plaintiff requested "a final week," stating that counsel was still

working through the verification process and awaiting documents. (Sanchez Decl., Ex. G.) On July 27, 2026, Plaintiff again requested additional time through August 11, 2026, stating that verification remained in process and that records and documents were still being reviewed or awaited. (Sanchez Decl., Ex. H.) On July 29, 2026, Defendants advised that no further extension had been approved and filed the instant motion. (Sanchez Decl., Ex. H.)

Plaintiff's counsel further declares that, after the instant motion was filed, the paralegal assisting with the discovery unexpectedly took leave and thereafter resigned with no notice, requiring counsel to assume responsibility for completing the outstanding responses and causing additional delay in finalizing them. (Avila Decl. ¶ 10.) Plaintiff served verified responses on August 18, 2026. When Defendants identified omitted interrogatory responses on August 21, 2026, Plaintiff served verified amended responses that same day. (Avila Decl. ¶¶ 11-14.)

Under the totality of the circumstances, the Court finds that Plaintiff has not shown substantial justification for the delay after July 6, 2026, or other circumstances making the imposition of sanctions unjust. The original calendaring error explains the missed June 2 deadline, but Defendants accommodated that circumstance by extending the response deadline through July 6. Plaintiff still had not served responses when Defendants filed the motion on July 29, and the subsequent staffing issue arose only after the motion was filed. Plaintiff did not serve complete verified responses until August 21, 2026. The Court finds that the instant motion was necessary to obtain complete responses before the September 8, 2026 hearing.

Defendants' counsel declares that 3.6 hours were incurred preparing the motion, consisting of 2.5 hours drafting the memorandum, 0.8 hours drafting the supporting declaration, 0.2 hours drafting the notice, and 0.1 hours drafting the proposed order, at an hourly rate of \$190.00, for \$684.00 in attorney's fees. Counsel also incurred a \$60.00 filing fee, for a total of \$744.00. (Sanchez Decl. ¶ 14.) Although counsel stated that a supplemental declaration would be submitted with the reply for any additional fees or costs, none was submitted. Defendants continue to seek \$744.00 in the reply. The Court finds counsel's hourly rate of \$190.00 and the 3.6 hours expended reasonable.

Defendants' request for monetary sanctions is GRANTED in the amount of \$744.00 against Plaintiff.

CONCLUSION

Defendants' Motion to Compel Responses to Form Interrogatories, Set One, Special Interrogatories, Set One, and Request for Production of Documents, Set One, is DENIED as moot.

Defendants' request for monetary sanctions is GRANTED in the amount of \$744.00 against Plaintiff Julio Cesar Iglesias Herrera. Sanctions are payable within 30 days.